

In United States law, the bad tendency principle was a test that permitted restriction of freedom of speech by government if it was believed that a form of speech had a sole tendency to incite or cause illegal activity. The principle, formulated in *Patterson v. Colorado* (1907), was seemingly overturned with the "clear and present danger" principle used in the landmark case *Schenck v. United States* (1919), as stated by Justice Oliver Wendell Holmes Jr. Yet eight months later, at the start of the next term in *Abrams v. United States* (1919), the Court again used the bad tendency test to uphold the conviction of a Russian immigrant who published and distributed leaflets calling for a general strike and otherwise advocated revolutionary, anarchist, and socialist views. Holmes dissented in *Abrams*, explaining how the clear and present danger test should be employed to overturn *Abrams*' conviction. The re-emergence of the bad tendency test resulted in a string of cases, after *Abrams*, employing that test, including *Whitney v. California* (1927), where a woman was convicted simply because of her association with the Communist Party. The court ruled unanimously that although she had not committed any crimes, her relationship with the Communists represented a "bad tendency" and thus was unprotected. The "bad tendency" test was finally overturned in *Brandenburg v. Ohio* (1969) and was replaced by the "imminent lawless action" test.

See also

Espionage Act of 1917

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References

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